

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS

-----X Index # 711157/24

SANDRA DIAZ,

Plaintiff,

-against-

THE CITY OF NEW YORK, NEW YORK CITY
POLICE DEPARTMENT AND POLICE OFFICER
LIAM DALE, TAX NO 967470

VERIFIED COMPLAINT

Defendant.

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SANRA DIAZ ("Plaintiff), by her counsel, John James, Esq, complaining of the
defendants , allege as follows:

NATURE OF THE ACTION

1. This is an action at law to redress the deprivation of rights secured to Plaintiff under color of statute, ordinance, regulation, custom; and/or to redress the deprivation of rights, privileges, and immunities secured to Plaintiff by the Fourth, Fifth and Fourteenth Amendments to the Constitution of the United States, and by Title 42 U.S.C. § 1983; and arising under the law and statutes of the City and/or State of New York.

THE PARTIES

2. At all times material to this complaint, Plaintiff was, and still is, a resident of the City of New York, who at all times material and relevant to this complaint resided, and still resides, in Queens County, City and State of New York.

3. Plaintiff is a Latina/Hispanic female of full age. Plaintiff is a NYC employee as she is a NYC Dept of Education Teacher for over 10 years.

4. At all relevant times, the defendant officer was, and still is as law enforcement offices in the employ of the New York City Police Department (hereinafter "NYPD").

5. At all times herein, the defendant officer was acting under the color of his official capacity, and his acts were performed under color of the statutes and ordinances of the City of New York and/or the State of New York.

6. Plaintiff sues each defendant in their respective individual and official capacities.

FACTUAL ALLEGATIONS

7. On May 30, 2023,, at approximately 7:30 pm , Plaintiff was residing lawfully in her home in Queens NY.

8. That at that time, plaintiff was in her home with her children and grandchildren.

9. That at that time, the defendant officer approached plaintiff's residence and knocked on plaintiff's door and asked her if she keyed the car of her ex-fiancée. Plaintiff responded by stating that she did not key her ex-fiancée's car.

10. The defendant officer reviewed a video taken by plaintiff's ex-fiancée but said video had no date or time stamp and did not show plaintiff keying any car or moving her arms or hands in a fashion showing she keyed the car. There was absolutely no basis for the above-referenced defendant officer to handcuff and arrest plaintiff in the presence of her children, grandchildren and neighbors.

10. Plaintiff was illegally and unlawfully arrested by the defendant officer.

11. Following her arrest, plaintiff was taken to the Police Department of the City of New York Precinct, where she was processed and photographed and fingerprinted.

12. Subsequently the Plaintiff was arraigned and charged with the following offences:

"Criminal Mischief with intent to damage property; (P.L.145.00.01).

13. Defendant officer signed the complaint.

14. Plaintiff was released from custody at approximately 06:00 pm on May 31, 2023.

15. On September 5, 2023, the Office of the District Attorney, Queens County, failed to prosecute the criminal action against the Plaintiff within the speedy trial time

**CAUSE OF ACTION ON BEHALF OF PLAINTIFF: FALSE ARREST AND FALSE
IMPRISONMENT UNDER 42 U.S.C § 1983**

21. Plaintiff repeats the allegations of the preceding paragraphs herein.

22. The above-described respective arrest, detention and imprisonment of Plaintiff were without just or probable cause and without any warrant or legal process directing or authorizing Plaintiff's arrest or subsequent detention.

23. As a result of Plaintiff's above-described false arrest and detention, she has been caused to suffer humiliation, great mental and physical anguish, loss of income, embarrassment and scorn among those who know her, was prevented from summer school employment with NYC DEPT OF EDUCATION, was prevented from taking courses to increase her salary with said employer, and has been caused to incur legal expenses, and has been otherwise damaged in her character and reputation.

24. Consequently, the Plaintiff has been damaged and hereby demands compensatory and punitive damages in an amount to be proven at trial against each of the defendants, individually and severally.

WHEREFORE, Plaintiff prays for judgment against the defendants, individually and severally, as follows: for compensatory damages against each defendant in an amount to be proven at trial; for exemplary and punitive damages against each defendant in an amount to be proven at trial; for costs and expenses of suit herein, including Plaintiff's reasonable attorney's fees; for pre-judgment and post-judgment interest; all in a sum of money that exceeds the jurisdiction of all lower Courts, and for such other and further relief as this court deems just and appropriate.

Dated: November 19, 2024
New York, New York

John James

John James, Esq.
299 Broadway, 17th Flr.
NY NY 10007
212- 227-3067

VERIFICATION

STATE OF NEW YORK }
 ss.:
COUNTY OF NEW YORK}

The undersigned, an attorney admitted to practice in the State of New York, under penalties of perjury, affirms the following to be true:

Deponent has read the foregoing COMPLAINT and knows the contents thereof; the same is true to deponent's own knowledge, except to those matters deponent believes it to be true; and the reason this verification is made by deponent and not by the plaintiff is because the plaintiff is not within the county where your deponent has his office. The grounds of deponent's belief as to all matters not stated upon deponent's knowledge are communications with plaintiff and copies of plaintiff's records in deponent's possession.

Dated: November 18, 2024
NY NY

JOHN JAMES, ESQ.